

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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WENDELL BAKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH McCADDEN, Shield No. 04110, POLICE OFFICER THOMAS BISCIONE, SERGEANT ROBERT HORAI and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 14, 2015

Yours, etc.

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Joseph McCadden, Midtown South Precinct, 357 West 35th Street, New York, New York 10001

Police Officer Thomas Biscione, Midtown South Precinct, 357 West 35th Street, New York, New York 10001

Sergeant Robert Horai, Patrol Borough Manhattan South, 230 East 21st Street, New York, New York 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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WENDELL BAKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH McCADDEN, Shield No. 04100, POLICE OFFICER THOMAS BISCIONE, SERGEANT ROBERT HORAI, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, WENDELL BAKER, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and New York State law. On April 21, 2012, at approximately 6:00 p.m., plaintiff, Wendell Baker, while lawfully present in the vicinity of 250 West 34th Street, New York, New York, was subject to an unlawful stop, question, frisk, search, seizure, detention, false imprisonment, false arrest, malicious prosecution by the defendant New York City police officers. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, caused the unjustifiable arrest of, and caused the malicious prosecution of plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff WENDELL BAKER is a resident of the County of Bronx, State of New York.

3. Police Officer JOSEPH McCADDEN, Shield No. 04110, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer JOSEPH McCADDEN, Shield No. 04110, was at all times relevant herein, assigned to the 14th Precinct.

5. Police Officer JOSEPH McCADDEN, Shield No. 04110, is being sued in his individual and official capacity.

6. Police Officer THOMAS BISCIONE is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Police Officer THOMAS BISCIONE was at all times relevant herein, assigned to the 14th Precinct.

8. Police Officer THOMAS BISCIONE is being sued in his individual and official capacity.

9. Sergeant ROBERT HORAI is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Sergeant ROBERT HORAI was at all times relevant herein, assigned to the 14th Precinct.

11. Sergeant ROBERT HORAI is being sued in his individual and official capacity.

12. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On April 21, 2012, at approximately 6:00 p.m., plaintiff was lawfully present in the vicinity of 250 West 34th Street, New York, New York.

20. Plaintiff was lawfully standing on a public sidewalk when suddenly the individually named defendants forcefully and unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff without reasonable suspicion, probable cause or any legal justification.

21. Plaintiff complied with all of the defendant police officers' orders.

22. The individually named defendants intentionally and/or negligently caused plaintiff severe emotional distress by placing handcuffs on plaintiff and arresting him without cause or legal justification.

23. At no time were any illegal guns, drugs or contraband found on plaintiff's person, or in plaintiff's possession, custody, or control.

24. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

25. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

26. Nevertheless, the individually named defendants handcuffed and falsely arrested plaintiff, without probable cause to arrest him.

27. Defendants transported plaintiff to the 14th Precinct against his will for arrest processing.

28. Upon arrival at the 14th Precinct, plaintiff Wendell Baker was placed in a holding cell by the defendants, where defendants unlawfully held plaintiff without reasonable suspicion or probable cause.

29. While plaintiff was detained in a holding cell at the 14th precinct, the defendant NYPD officers falsely communicated to the New York County District Attorney's Office that plaintiff had committed a crime, and provided the District Attorney's Office with false, incomplete and misleading facts and/or evidence that the defendant officers claimed formed the basis to arrest and prosecute plaintiff.

30. On April 22, 2012, after being unlawfully detained by defendants for several hours at the 14th Precinct, plaintiff was transported to Manhattan Central Booking.

31. A criminal prosecution was initiated by defendants against plaintiff without probable cause, based upon the false, misleading, and incomplete facts and evidence communicated to the District Attorney's Office by the defendant NYPD officers and the false, misleading and/or incomplete facts alleged in the criminal court complaint signed by Defendant McCadden, falsely charging plaintiff with Fraudulent Accosting (PL 165.30(1)).

32. On April 22, 2012, after being unlawfully detained at Manhattan Central Booking for many hours in filthy and deplorable conditions, plaintiff was arraigned and released on his own recognizance.

33. Plaintiff was forced to return to New York City criminal court on approximately three dates to address the false criminal charges brought against him by defendants.

34. On September 11, 2012, all criminal charges against plaintiff were dismissed and terminated in his favor after the New York County District Attorney's Office affirmatively moved to dismiss the charges.

35. The other individually named defendant police officers who were present at the scene of the incident failed to intervene to prevent the unlawful stop, question, frisk, search, arrest, detention, and prosecution of plaintiff, even though they knew or should have known that plaintiff's constitutional rights were being violated.

36. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and did nothing to prevent the unjustifiable search and seizure of plaintiff.

37. The unlawful stop, question, frisk, search, seizure, false arrest, false imprisonment, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, emotional, and economic trauma.

38. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally arrest individuals on the basis of

Fraudulent Accosting (PL 165.30(1)) without a specific, articulable factual basis supporting probable cause to believe the individual engaged in said crime, caused by the deficient training of its officers with respect to establishing probable cause for said crime.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested and imprisoned, and maliciously prosecuted without reasonable suspicion or probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution.

45. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

48. Defendants lacked probable cause to search plaintiff.

49. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The conduct of defendants in stopping and frisking plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

55. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

58. Plaintiff repeats and realleges paragraphs 1 through 57 as if fully set forth herein.

59. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution.

60. Defendants commenced and continued a criminal proceeding against plaintiff.

61. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

62. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

63. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

SIXTH CAUSE OF ACTION

Failure to Intervene

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

66. Defendants failed to intervene to prevent the unlawful conduct described herein.

67. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

SEVENTH CAUSE OF ACTION

Monell Liability

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a policy, custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

70. Defendants City demonstrated a policy and practice of deliberate indifference to the City's obligations to educate, instruct, supervise, and set up standards for its officers and attorneys in connection with their constitutional duties and obligations in order to have probable cause to make arrests and initiate criminal charges on the basis of Fraudulent Accosting (PL 165.30(1)).

71. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York were the moving force behind the violation of plaintiff's constitutional rights as described herein. Additionally, as a result of the failure of defendant City of New York to properly recruit, screen, train, discipline, and supervise its employees on the elements constituting probable cause to arrest and initiate criminal charges on the basis of Fraudulent Accosting (PL 165.30(1)), including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

73. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was physically, emotionally, and economically injured.

74. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights

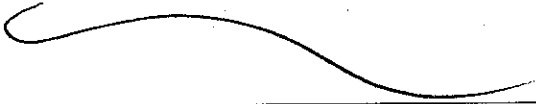
JURY DEMAND

75. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff WENDELL BAKER demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 14, 2015

By: 

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Sergeant Robert Horai, Patrol Borough Manhattan South, 230 East 21st Street, New York, New York 10010

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
April 14, 2015



STUART E. JACOBS, Esq.